

TENTATIVE RULING(S) FOR AUGUST 5, 2026

Department S37 – Judge Winston Keh

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2516898

Turner v. GM

TENTATIVE RULING(S):

Before the Court is Plaintiff's Motion for Attorney's Fees and Costs totaling \$21,696.78. This figure includes \$16,147.50 in attorney's fees; a lodestar of 0.3, increasing attorney's fees by \$4,844.25; and costs of \$705.03. Defendant GM opposes and Plaintiff replies.

Analysis

Reasonable Hourly Rate. A reasonable hourly rate is one that is prevailing in the community where the case is litigated for similar work. (*MBNA America Bank, N.A. v. Gorman* (2006) 147 Cal.App.4th Supp. 1, 13.)

In reaching the lodestar, a court begins by deciding "the reasonable hours spent" on the case and multiplying that number by "the hourly prevailing rate for private attorneys in the community conducting

noncontingent litigation of the same type.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) “[T]he unadorned lodestar reflects the general local hourly rate for a *fee-bearing case*; it does *not* include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider under *Serrano III*.” (*Id.* at p. 1138 [discussing *Serrano v. Priest* (1977) 20 Cal.3d 25].)

Requested rates are reasonable if they are “within the range of reasonable rates charged by and judicially awarded comparable attorneys for comparable work.” (*Children’s Hosp. & Med. Ctr. v. Bontá* (2002) 97 Cal.App.4th 740, 783.)

Plaintiff claims rates of \$525 per hour for attorney Christopher Urner; \$450 per hour for attorney Jorge L. Acosta; and \$250 per hour for paralegal Mary M. Zazueta. (Acosta Decl., ¶27.) The case was taken on a contingency basis. (Acosta Decl., ¶11.) Attorney Acosta’s declaration provides background and experience for each of the three billers. (Acosta Decl., ¶¶6-10.) Acosta also provides or cites to other materials supporting the rates claimed including the United States Consumer Law Attorney Fee Survey Report from 2017-2018 (noting those rates should be adjusted for inflation) and the Lafey Matrix. (Acosta Decl., ¶¶19-21; Exh. C.)

In opposition, Defendant generally argues the rates claimed are unreasonably high. Included in this portion of Defendant’s brief are contentions that tasks performed by higher billers should have been performed by lower billers, but those arguments do not go to the propriety of the rates themselves in the first instance and are more appropriately addressed when addressing the proper number of hours for which reimbursement is properly awarded.

The rates claimed are reasonable for lemon law cases prosecuted in this legal community. Note, however, these rates already adequately reward counsel for the contingency nature of the representation thus negating the need to apply a multiplier as discussed more fully below.

Reasonable Hours. The starting point for every fee award is calculating an attorney’s services in terms of time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

Counsel’s invoices are attached as Exhibit A to attorney Acosta’s declaration. Attorney Urner claims 7.5 hours; attorney Acosta claims 18.8 hours; and paralegal Zazueta claims 15 hours, for a collective total of 41.3 hours including estimated time to complete prosecution of this fee motion.

As indicated above, Defendant argues the 7.5 hours attorney Christopher Urner billed at \$525 per hour could have been properly performed by attorney Acosta at only \$450 per hour. There is nothing to indicate the time claimed was duplicative, and it is reasonable that two attorneys would both work on this motion.

Similarly, Defendant argues time entries claimed by attorney Acosta on 8/20/25 and 8/26/25 for scheduling matters could have been handled by paralegal Zazueta at a lower rate. These involved emails between counsel, and it was reasonable that counsel would handle these rather than a paralegal.

Defendant next argues counsel spent excessive time on certain tasks given their self-proclaimed skill and experience. Defendant points out examples where both attorneys reviewed Plaintiff's auto service record; paralegal Zazueta billed 1.9 hours to draft initial disclosures and prepare document production, Acosta then billed 0.6 hours to review the compilation, and Zazueta then billed 0.2 hours to finalize the production and create a Dropbox link; Acosta billed 3.1 hours researching applicable technical bulletins and research and drafting a memorandum on the same; and Zazueta and Acosta billed a collective 4 hours to analyze Defendant's initial disclosures. These entries each appear reasonable standing alone, and there is no indication of general overbilling in the invoices. Although lemon law cases are repetitive, counsel is still required to carefully review documents prepared and received.

Defendant also challenges 5.5 hours of anticipated time claimed for the remainder of this fee motion, contending it is entirely precluded under *Karapetian v. Kia Motors Am., Inc.* (C.D. Cal. 2013) 970 F.Supp.2d 1032. However, the District Court did not find such anticipated time categorically unrecoverable. Instead, it criticized the amount of anticipated time claimed and the fact that estimated time was claimed for work done years prior. (*Id.* at pp. 1036-1037.) The anticipated time claimed is reasonable.

In sum, the Court sets the lodestar, inclusive of all attorney, paralegal, and anticipated time, at \$16,147.50—the full amount requested.

Multiplier. Plaintiff seeks a 0.3 multiplier to the lodestar recovery due to the delay in payment, expertise resulting in an excellent recovery, and the contingent risk involved.

The purpose of a multiplier is “to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair

market rate for such services.” (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833.) However, the multiplier cannot apply to the work related to the attorney fee motion. (*Pellegrino v. Robert Half Intern., Inc.* (2010) 182 Cal.App.4th 278, 296.)

“A lawyer who both bears the risk of not being paid and provides legal services is not receiving the fair market value of his work if he is paid only for the second of these functions. If he is paid no more, competent counsel will be reluctant to accept fee award cases.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, quoting Leubsdorf, *The Contingency Factor in Attorney Fee Awards* (1981) 90 Yale L.J. 473, 480.) “The purpose of a fee enhancement, or so-called multiplier, for contingent risk is to bring the financial incentives for attorneys enforcing important constitutional rights, such as those protected under the anti-SLAPP provision, into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Id.* at 1132.)

As explained in *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359:

“It has long been recognized, however, that the contingent and deferred nature of the fee award in a civil rights or other case with statutory attorney fees requires that the fee be adjusted in some manner to reflect the fact that the fair market value of legal services provided on that basis is greater than the equivalent noncontingent hourly rate. (*Ketchum v. Moses, supra*, 24 Cal.4th at pp. 1132–1133.) “ ‘A lawyer who both bears the risk of not being paid and provides legal services is not receiving the fair market value of his work if he is paid only for the second of these functions. If he is paid no more, competent counsel will be reluctant to accept fee award cases.’ ” (*Id.* at p. 1133, quoting with approval from Leubsdorf, *The Contingency Factor in Attorney Fee Awards* (1981) 90 Yale L.J. 473, 480.) ***The contingency adjustment may be made at the lodestar phase of the court's calculation or by applying a multiplier to the noncontingency lodestar calculation (but not both).*** (*Ketchum v. Moses, supra*, 24 Cal.4th at pp. 1133–1134.)”

(*Horsford v. Board of Trustees of California State University, supra*, 132 Cal.App.4th at 394-395, emphasis added.)

As explained above, the rates already claimed adequately compensate counsel for the contingent nature of the litigation and delay in payment. Although Plaintiff prevailed, the results are not so impressive as to justify an increased award given the routine nature of lemon law cases. Thus, the Court denies Plaintiff’s request for a multiplier.

Costs. Typically, costs are challenged via a motion to tax costs served and filed within 15 days after service of the cost memorandum. (Cal. Rules of Court, rule 3.1700(b).) Here, however, Plaintiff filed

her memorandum of costs concurrently with the motion. Defendant has not affirmatively challenged the \$705.03 in costs claimed, and has not moved to tax. Therefore, the Court grants the request for costs in full.

RULING

Based on the foregoing analysis, the Court rules as follows:

1. Grants Plaintiff's request for attorney's fees exclusive of costs in the amount of \$16,147.50;
2. Denies Plaintiff's request for a multiplier; and
3. Allows costs in the amount of \$705.03.

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CIVSB2505697

Acosta v. Ford

TENTATIVE RULING(S):

Before the Court is Plaintiffs' Motion for Attorney's Fees, Costs and Expenses. Plaintiffs moved to recover \$9,428 in attorney fees, a 1.3 lodestar multiplier in the amount of \$2,828.40, and \$2,033.39 in costs and expenses, for a total request of \$14,289.79. (Kirnos Decl. ¶ 2.)

Ford opposes and requests that the Court award no more than \$4,582.80 in attorney fees and deny Plaintiffs' request for costs and a multiplier.

Plaintiffs responded that Ford has not established that the requested hourly rates or hours are unreasonable. Plaintiffs also reduce the lodestar by \$172.50 because counsel spent two hours, rather than the anticipated 2.3 hours, reviewing Ford's opposition and preparing the reply and supporting declaration.

Plaintiffs therefore seek a revised lodestar of \$9,255.50, plus a multiplier and \$2,033.39 in costs and expenses. (Swanson Decl. ¶ 4; Reply 10:12-13.)

Reasonable Hourly Rate

A reasonable hourly rate is one that is prevailing in the community where the case is litigated for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 (*Tidrick*).)

Plaintiffs seek the following hourly rates for the attorneys who worked on this case: Lauren Ungs and Chris Swanson at \$575 per hour; Russell Higgins at \$600 per hour; Jeffery Mukai at \$550 per hour; Armando Lopez at \$450 per hour; Colby Meagle at \$400 per hour; and Caitlin Rice at \$375 per hour. Plaintiffs also seek \$145 per hour for paralegals Imelda Oiden and Patricia Cortazar. (Kirnos Decl. ¶ 28(a)-(i), Exh. A.)

In support of the requested rates, Kirnos describes the attorneys' education, years of practice, litigation experience, and experience prosecuting consumer-protection and Song-Beverly matters. (Kirnos Decl. ¶¶ 23-28.) Plaintiffs also submit orders from other Song-Beverly matters approving comparable rates, including 2025 San Bernardino County orders approving rates up to \$550 per hour and orders from surrounding counties approving rates up to \$575 and \$595 per hour. (Kirnos Decl. ¶ 30, Exhs. W-FF.)

Ford argues that the rates should be reduced to \$350 per hour for partners and \$275 per hour for associates. Ford relies primarily on federal district court decisions involving work performed several years earlier and selected portions of a 2022 Real Rate Report. (Ross Decl. ¶ 3, Exh. B.)

Ford also argues that the requested rates are artificial because Plaintiffs retained counsel on a contingency basis and did not agree to pay those rates directly. That circumstance does not determine the reasonable hourly rate. The lodestar is based on the prevailing market rate for comparable legal services, rather than the amount the prevailing party was contractually obligated to pay counsel. (*PLCM, supra*, 22 Cal.4th at p. 1095; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.)

Ford's evidence does not establish that its proposed rates reflect the prevailing rates for contingent Song-Beverly litigation in San Bernardino County in 2025 and 2026. The Real Rate Report is based on 2022 data, does not contain a category for Song-Beverly litigation, and does not provide rates specific to San Bernardino County. The report also contains materially different figures depending on the selected

category. It lists national median rates for consumer-goods litigation of \$366 for partners and \$281 for associates, and national median rates for consumer-services litigation of \$605 for partners and \$440 for associates. Its Los Angeles general-liability table lists median rates of \$835 for partners and \$475 for associates. Ford's citation to page 85 for general-liability rates is mistaken because page 85 concerns bankruptcy and collections. Although Ford also cites lower insurance-defense rates, those negotiated institutional-defense rates do not establish the market rate for contingent consumer representation. Given the report's age, geography, and varying practice-area categories, it does not establish that all partner rates should be reduced to \$350 or all associate rates to \$275. (Ross Decl. ¶ 3, Exh. B, pp. 64, 85, 136, 144, 178.)

Ford correctly observes that this was not an unusually complex case and that the firm used templates and divided work among several attorneys. Those considerations may bear on the reasonable time required for particular tasks, but they do not establish that the requested hourly rates are unreasonable. The use of templates generally promotes efficiency, and the relevant question remains the prevailing market value of the services rendered.

The requested rates are at the higher end of the range, particularly Higgins's \$600 rate. Nevertheless, Plaintiffs provide evidence of counsel's substantial experience and recent orders approving comparable rates in Song-Beverly cases, including cases litigated in San Bernardino County. Ford's generalized rate evidence does not justify reducing all partners to \$350 and associates to \$275.

Accordingly, the Court does not agree with Ford's requested across the board rate reduction.

Reasonable Hours

The starting point for every fee award is calculating an attorney's services in terms of time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 814-815.)

Plaintiffs initially sought compensation for 25.5 hours. In reply, Plaintiffs reduced the requested time by 0.3 hour because Swanson spent two hours, rather than the anticipated 2.3 hours, reviewing Ford's opposition and preparing the reply. Plaintiffs therefore seek compensation for 25.2 hours and a revised lodestar of \$9,255.50. (Swanson Decl. ¶ 4; Reply 8:17-21.)

Ford argues the hours should be reduced because Plaintiffs used nine timekeepers in a routine case, billed for internal communications and administrative work, block billed certain tasks, included time

after Ford served the section 998 offer, and requested excessive time for the fee motion. Ford identifies the challenged entries in the exhibits to the Ross declaration. (Ross Decl. ¶ 4, Exhs. C-D.)

1. Number of Timekeepers

The use of nine timekeepers does not, by itself, establish that the billing was excessive. Most of the attorneys performed discrete tasks, and the total time sought for the entire case is only 25.2 hours. The billing records do not show multiple attorneys appearing at the same hearing or deposition, repeated review of the same work by several attorneys, or substantial time devoted to bringing new attorneys up to speed.

Ford identifies seven timekeepers who worked on its behalf, and Ross's declaration establishes that she also worked on the case, bringing the identifiable number of defense attorneys and other personnel to at least eight. (Kirnos Decl. ¶ 31; Ross Decl. ¶ 1.) Although Ford's staffing does not determine the reasonableness of Plaintiffs' staffing, it undermines Ford's contention that the number of Plaintiffs' timekeepers is inherently unreasonable.

Accordingly, the Court is not inclined to a reduction merely because nine timekeepers appear in the billing records.

2. June 3, 2025 Block-Billed Entry

Ford challenges Oleden's 0.3-hour entry for reviewing the file, communicating with the client, and emailing the responsible attorneys. Ford requests a 20 percent reduction because the entry combines several tasks.

Block billing is not per se prohibited, but it may support a reduction when it obscures the nature of the work performed or prevents the Court from assessing whether the time was reasonably incurred. (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1325–1326.)

Here, the tasks were related, the total time was minimal, and the entry permits meaningful review. The record does not show that 0.3 hour was unreasonable.

3. June 23, 2025 Hearing Memorandum

Mukai billed 0.2 hour to prepare a memorandum concerning the outcome of Ford's ex parte application. Ford characterizes the entry as non-compensable internal communication.

Preparing a short memorandum to preserve the result of a contested hearing is reasonably related to case management and the prosecution of the action. Only Mukai billed for the task, and the 0.2 hour requested is modest.

4. June 26, 2025 Translation

Oliden billed 0.1 hour to translate responses to the initial-disclosure questionnaire. Ford argues translation is a ministerial or production task. The translation facilitated preparation of Plaintiffs' disclosures and was billed at the paralegal rate rather than an attorney rate. Given the nature of the task and the minimal time requested, the entry is reasonably connected to the prosecution of the action.

5. July 10, 2025 Calendaring and Database Entry

Support services, including expenses related to secretaries and paralegals, are includable in an award for attorneys' fees. (*City of Oakland v. McCullough* (1996) 46 Cal.App.4th 1, 7.) But these charges are distinguishable from purely clerical work, which is not recoverable. (*See Zargarian v. BMW of N. Am., LLC* (C.D. Cal. 2020) 442 F.Supp.3d 1216, 1229 ["It is well established that a plaintiff may not recover fees for time spent on purely clerical work"].)

Cortazar billed 0.1 hour, at her paralegal rate of \$145 per hour to calendar the mediation and update Salesforce, resulting in a \$14.50 charge. Calendaring an event and updating the firm's internal case-management database are clerical or administrative tasks, rather than compensable paralegal services involving legal skill or substantive litigation support. Therefore, the Court excludes the entire entry and reduces the requested fees by \$14.50.

6. August 4, 2025 Deposition Exhibits

Rice billed 0.3 hour, at her attorney rate of \$375 per hour to organize and prepare Ford's PMQ exhibits for transmission to the court reporter, resulting in a \$112.50 charge. Although the exhibits were used in connection with a compensable deposition, organizing and transmitting exhibits is clerical work rather than attorney-level legal work. Therefore, the Court excludes the entire entry and reduces the requested fees by \$112.50.

7. August 22, 2025 Deposition Notes

Rice billed 0.3 hour to draft and save attorney notes concerning the Ford PMQ deposition. Ford characterizes the entry as internal communication or administrative work. The entry reflects preparation

and preservation of substantive attorney notes regarding deposition testimony. It does not merely concern saving or transmitting documents. The work was reasonably related to counsel's evaluation and use of the deposition evidence.

8. October 2, 2025 Settlement Communication

Higgins billed 0.1 hour to confer with staff regarding the clients' response to a mediation proposal, resulting in a \$120 charge. Ford argues the entry should be eliminated as an internal communication. The entry concerns obtaining or communicating the clients' response to a settlement proposal. Only Higgins billed for the communication, and there is no corresponding charge by the staff member. Reasonable internal communications necessary to settlement are compensable.

9. October 22, 2025 Review and Acceptance of Section 998 Offer

Higgins billed 0.2 hour, at his requested rate of \$600 per hour to review and execute Ford's section 998 offer on October 22, 2025. Ford argues the entry should be excluded because it was incurred after the October 20, 2025 fee cutoff.

Plaintiffs rely on *Covert v. FCA USA, LLC* (2022) 73 Cal.App.5th 821, 838, which rejected the general proposition that post offer fees are categorically unrecoverable under Civil Code section 1794, subdivision (d). But the accepted offer here expressly provides that fees are to be calculated as though Plaintiffs prevailed "as of the date of this offer of judgment," October 20, 2025, while separately permitting recovery of fees reasonably incurred in bringing the fee motion. (Ross Decl. ¶ 2, Exh. A, ¶ 2.)

Because the October 22 entry was incurred after the agreed merits-fee cutoff and did not concern preparation or prosecution of the fee motion, the Court excludes the full \$120 charge.

10. Fee Motion

Ford challenges all time associated with the fee motion. Plaintiffs initially sought 4.1 hours, consisting of 0.8 hour for preparing the moving papers, 2.3 anticipated hours for reviewing the opposition and preparing the reply, and one anticipated hour for the hearing.

In reply, Swanson states he spent a combined two hours reviewing Ford's opposition and supporting declaration, cross-referencing the disputed entries, and preparing the reply and supporting declaration. Plaintiffs accordingly reduced the request by 0.3 hour, or \$172.50. (Swanson Decl. ¶ 4.)

Ford's section 998 offer expressly permits Plaintiffs to recover fees and costs reasonably incurred in bringing the fee motion. (Ross Decl. ¶ 2, Exh. A, ¶ 2.)

The revised request is modest. Counsel billed only 0.8 hour for the moving papers and two hours for reviewing Ford's detailed opposition, analyzing the challenged billing entries, and preparing the reply and declaration. One anticipated hour for preparation and appearance at the hearing is also reasonable. Although the moving and reply papers rely in part on arguments used in other Song-Beverly cases, counsel was still required to review this file, calculate the case-specific lodestar, address Ford's entry-specific objections, and respond to Ford's rate evidence.

The Court is not inclined to further reduce the fee-motion work.

Lodestar Multiplier

Plaintiffs request a 1.3 multiplier based on the contingent nature of the representation, the risk of nonpayment, and the delay in receiving payment. (Kirnos Decl. ¶¶ 3, 8.)

A fee enhancement may compensate counsel for contingent risk and delay. (*Ketchum*, *supra*, 24 Cal.4th at p. 1138.) The enhancement is not automatic, however, and must be supported by circumstances specific to the case.

This matter did not involve unusually novel or difficult legal issues. The action was pending for approximately eight months before the section 998 offer, involved no dispositive motion, expert discovery, or trial, and involves a request for only 25.2 hours. Although Ford filed an ex parte application and a motion for protective order concerning initial disclosures, the protective-order motion was withdrawn. Plaintiffs took one PMQ deposition and participated in mediation before accepting Ford's offer.

The requested hourly rates already reflect counsel's experience and specialization in Song-Beverly litigation. Contingency risk and delay are separate permissible considerations, but Plaintiffs rely principally on generalized circumstances common to Knight Law Group's Song-Beverly practice. They do not establish that this particular case presented unusual contingent risk, substantially precluded counsel from accepting other employment, or involved an extraordinary delay in payment. The favorable result is adequately reflected in the reasonable lodestar. Accordingly, the Court denies the requested multiplier.

Costs and Expenses

Plaintiffs seek \$2,033.39 in costs and expenses. Plaintiffs filed a verified Memorandum of Costs and worksheet on January 28, 2026. The worksheet identifies the complaint and fee-motion filing fees, jury fees, Ford PMQ deposition expense, service expenses for both defendants, electronic filing expenses, Plaintiffs' allocated mediation expense, and an appearance-attorney expense for the trial-setting conference.

Ford did not file a noticed motion to strike or tax Plaintiffs' verified Memorandum of Costs. Instead, it challenged the requested costs in its opposition to the attorney-fee motion. California Rules of Court, rule 3.1700(b)(1), ordinarily requires an objection to a cost memorandum to be raised by a noticed motion filed and served within the prescribed period. Failure to challenge a cost bill through that procedure waives the objection. (*Tidrick, supra*, 112 Cal.App.5th at p. 1159; *Douglas v. Willis* (1994) 27 Cal.App.4th 287, 290.) Because Plaintiffs also seek the same costs and expenses through this noticed motion under Civil Code section 1794, subdivision (d), however, the Court's ruling is not based solely on waiver issue, but instead addresses Ford's objections on the merits.

When the items claimed appear proper on their face, a verified memorandum of costs constitutes prima facie evidence that the listed costs and expenses were necessarily incurred, and the burden rests on the objecting party to demonstrate that a particular item is improper or unreasonable. (*Oak Grove School Dist. v. City Title Ins. Co.* (1963) 217 Cal.App.2d 678, 698–699.) Ford does not identify any particular cost item that was unnecessary, excessive, or improper. It argues only that Plaintiffs did not attach invoices to the moving papers. Plaintiffs' verified memorandum and accompanying worksheet identify each category and amount, and the invoices submitted with the reply further corroborate those previously disclosed costs.

The filing, service, deposition, mediation, and appearance expenses were reasonably incurred in commencing, prosecuting, and resolving the action. Thus, the Court awards the full \$2,033.39.

RULING

For all the reasons stated above, the Court rules as follows:

GRANTS IN PART Plaintiffs Agustin Acosta and Malvin Guzman's motion for attorneys' fees, costs, and expenses.

AWARDS Plaintiffs attorneys' fees in the reduced amount of \$9,008.50.

DENIES Plaintiffs' request for a 1.3 lodestar multiplier.

AWARDS Plaintiffs costs and expenses in the amount of \$2,033.39.

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CIVSB2521996

DOE v. County

TENTATIVE RULING(S):

Before the Court is Defendant County of San Bernardino's Demurrer to Plaintiff's Complaint. Plaintiff opposes and Defendant replies.

Meet and Confer

Code of Civil Procedure sections 430.41 and 435.5 require, before filing a demurrer or motion to strike, the moving party must meet and confer in person, by telephone, by video conference with the party who filed the pleading in order to determine if an agreement can be reached to resolve the objections to the pleading. The parties must meet and confer at least five days before the responsive pleading is due, but if they are unable to do so, an automatic 30-day extension of time within which to file the responsive pleading will be granted by filing and serving a declaration on or before the date the response would be

due, stating a good faith attempt was made to meet and confer. The moving party then must file and serve a meet and confer declaration with the motion stating either the means by which the parties met and conferred, or the party who filed the pleading failed to respond to the meet and confer request. (Code Civ. Proc., §§430.41(a), 435.5(a).)

Defense attorney Chandler A. Parker declares he emailed and left a voicemail for opposing counsel prior to filing the demurrer but received no response. (Parker Decl., ¶¶3-4.) Counsel therefore did not properly meet and confer, but the fault lies with opposing party Plaintiff's counsel rather than with the moving party. While this might typically justify a continuance to allow for proper meet and confer efforts, in this case the Court elects to address the merits of the demurrer because it was filed over 10 months ago on October 9, 2025, and has already been substantially delayed. However, the Court would like to hear from Plaintiff's counsel why he or she failed to respond to Defendant's invitation to meet and confer.

Analysis

First, second, and third causes of action under CANRA. Defendant first argues Plaintiff's complaint fails to allege sufficient facts to establish proximate cause. This argument appears to apply to the first three causes of action alleging CANRA violations.

"Proximate cause "is that cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produced the injury...and without which such result would not have occurred.' [Citation.]" (*Fleming v. State of California* (1995) 34 Cal.App.4th 1378, 1384.)

Proximate cause has two aspects, the first being cause in fact or "but for" causation. (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 352.) "An act is a cause in fact if it is a necessary antecedent of an event." (*Ibid.*, citation omitted.)

The second aspect of proximate cause "focuses on public policy considerations. Because the purported [factual] causes of an event may be traced back to the dawn of humanity, the law has imposed additional 'limitations on liability other than simple causality.' [Citation.] 'These additional limitations are related not only to the degree of connection between the conduct and the injury, but also with public policy.' [Citation.] Thus, 'proximate cause "is ordinarily concerned, not with the fact of causation, but with the various considerations of policy that limit an actor's responsibility for the consequences of his conduct.'" [Citation.] [Citation.] As Witkin puts it, "[t]he doctrine of proximate cause limits liability; i.e., in certain situations where the defendant's conduct is an actual cause of the harm, the defendant will nevertheless be absolved because of the manner in which the injury occurred. ... Rules of legal cause ... operate to relieve the defendant whose conduct is a cause in fact of the injury, where it would be considered unjust to hold him or her legally responsible." (6 Witkin, Summary of Cal. Law, *supra*, Torts, § 1186, p. 553.)

“Ordinarily, proximate cause is a question of fact which cannot be decided as a matter of law from the allegations of a complaint. ... Nevertheless, where the facts are such that the only reasonable conclusion is an absence of causation, the question is one of law, not of fact.” [Citations.]

(*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 353.)

In *State Dept. of State Hospitals*, the California Supreme Court noted a line of cases decided at the pleading stage each “held that proximate cause was not established when a governmental defendant’s failure to act allegedly caused injury, but the chain of causation included discretionary determinations for which no liability could be imposed.” (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 353-357.)

Cases discussed included:

- *Whitcombe v. County of Yolo* (1977) 73 Cal.App.3d 698 – A probationer assaulted the plaintiffs after being released on bail. The Court of Appeal sustained a demurrer against governmental entities accused of breaching a mandatory duty to investigate. The Court noted any decision to grant or revoke probation were left to the trial court’s discretion and was not bound by the probation officer’s report or recommendation, breaking the chain of proximate causation. (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 353-354, citing *Whitcombe, supra*, 73 Cal.App.3d at pp. 702-703, 707-708.)
- *State of California v. Superior Court* (1984) 150 Cal.App.3d 848 – The plaintiffs alleged they were defrauded by a property manager licensed by the Department of Real Estate and sued the Real Estate Commissioner for breaching his mandatory duty to investigate a prior fraud complaint against the manager. The Court of Appeal held even if the Commissioner properly investigated, there was no reasonable assurance sanctions would have prevented Plaintiff’s subsequent losses. (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 354-355, citing *State of California, supra*, 150 Cal.App.3d at pp. 852, 855-859.)
- *Fleming v. State of California* (1995) 34 Cal.App.4th 1378 – After a parolee committed murder, the victim’s family alleged the killer’s parole officer breached a mandatory duty to arrest him for a parole violation. The Court of Appeal held arrest without incarceration would not have necessarily prevented the crime, and incarceration required additional procedural steps that would have broken the causal chain. (*State Dept. of State Hospitals, supra*, 61 Cal.4th at p. 355, citing *Fleming, supra*, 34 Cal.App.4th at pp. 1381-1382, 1384.)

Defendant argues the scheme envisioned by CANRA requires an investigation that may or may not lead to a child’s removal from a dangerous situation, depending on how discretion is exercised by the empowered agencies and personnel as well as the courts.

Under CANRA, mandated reporters, including peace officers, who know or reasonably suspect child abuse or neglect have a duty to report the matter as specified. (*Kassey S. v. City of Turlock* (2013)

212 Cal.App.4th 1276, 1280.) “If the police officer breaches that duty, the police officer and his or her municipal employer are subject to liability for any injuries proximately caused by the breach.” (*Ibid.*)

CANRA imposes on law enforcement agencies the duty to cross-report reports they receive to other agencies. (§ 11166, subd. (k).) CANRA further contemplates that these agencies will, pursuant to their “existing duties,” investigate reported incidents of suspected child abuse, and that they will notify other agencies when they commence their investigation. (§ 11166.3, subd. (a); cf. *Planned Parenthood, supra*, 181 Cal. App. 3d at p. 259 [a “child protective agency receiving the initial child abuse report then conducts an investigation”].) Oftentimes, reporting by third parties is the only way the proper authorities become aware of an incident of child abuse. (Transcript of Assem. Public Hearing, *supra*, p. 17.) In this way, the statutory scheme sets up “a dichotomy between reporter and reportee.”

(*B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 190.)

Public employees such as social workers are provided immunity when their acts or omissions involve the exercise of discretion. (*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1285.) “Immunity ‘applies even to “lousy” decisions in which the worker abuses his or her discretion, including decisions based on “woefully inadequate information.” [Citation.]’ [Citation.] Courts have determined immunity applies to such decisions no matter how horrible the outcome, including a situation where a social worker returned a child to a father, who stabbed the child in the heart and lungs shortly thereafter.” (*Ibid.*)

Defendant argues liability on Plaintiff’s CANRA claims is predicated on the allegation that a breach of the duty to report neglect and abuse by Plaintiff’s parents was the proximate of Cox’s sexual abuse of Plaintiff. In other words, Defendant contends a mandated report of child abuse concerning Plaintiff’s parents might have caused other independent actors, including social workers and judicial officers, to exercise their discretion in a way that would have stopped Cox from sexually abusing Plaintiff even though the mandated report was not related to Cox’s sexual abuse. Defendant further argues the discretionary decisions of a social worker and/or the courts effectively break the chain such that proximate cause cannot be established under the authorities above.

The first cause of action is brought for violations of Penal Code section 11166.5, which requires mandated reporters to sign a statement as a prerequisite to employment acknowledging their responsibilities to report suspected abuse and neglect under CANRA. (Pen. Code, §11166.5, subd. (a).) Defendant argues its employees’ failure to sign such a document cannot plausibly constitute the proximate

cause of the sexual abuse Plaintiff suffered. Defendant argues this is akin to claiming the failure to sign a DMV handbook acknowledgement when obtaining a driver's license caused a car accident.

In opposition, Plaintiff argues 50 years of case law provides failure to report reasonably suspected abuse or neglect in accordance with CANRA has repeatedly been recognized as proximate cause of subsequent neglect and abuse. One such case provided:

If the risk of a resumption of physical abuse is thus a principal reason why a doctor's failure to diagnose and treat the battered child syndrome constitutes negligence, under section 449 of the Restatement the fact that the risk eventuates does not relieve him of responsibility.

Accordingly, the trial court in the case at bar could not properly rule as a matter of law that the defendants' negligence was not the proximate cause of plaintiff's injuries. Plaintiff is entitled to prove by expert testimony that defendants should reasonably have foreseen that her caretakers were likely to resume their physical abuse and inflict further injuries on her if she were returned directly to their custody.

(*Landeros v. Flood* (1976) 17 Cal.3d 399, 412.)

In *Alejo v. City of Alhambra* (1999) 75 Cal.App.4th 1180 (disapproved in part as discussed below in *B.H.*, *supra*, 62 Cal.4th 168), the three-year-old plaintiff alleged his father reported to police suspicions that the child's mother and/or her boyfriend were abusing the child. (*Id.* at p. 1183.) The police failed to conduct any investigation into the allegations, prepare an internal report, or cross-report the matter to other governmental agencies. (*Id.* at pp. 1183-1184.) Six weeks later, the mother's boyfriend severely beat the child, causing total and permanent disability. (*Id.* at p. 1184.)

The city demurred on grounds its police departments and officers had no special duty to protect the child from abuse, the reporting and investigation was a discretionary function, the department and officers were immune, and their failure to act did not cause the injuries. (*Alejo*, *supra*, 75 Cal.App.4th at p. 1184.)

The Court of Appeal held the complaint stated a cause of action under the doctrine of negligence per se based on CANRA. (*Alejo*, *supra*, 75 Cal.App.4th at p. 1184.) CANRA creates a special duty of mandated reporters to investigate child abuse, and to take further action when an objectively reasonable person in the same situation would suspect child abuse. (*Id.* at p. 1186.) The duty to investigate is mandatory. (*Id.* at pp. 1186-1187.) The Court found the case analogous to *Landeros*: "In our view, a physician's statutory duty to report when it 'appears' to her a child has been subjected to abuse and a police officer's statutory duty to report when she 'reasonably suspects' a child has been subjected to abuse

are not rationally distinguishable for purposes of imposing liability under the negligence per se doctrine.

(*Id.* at p. 1188, citing *Landeros, supra*, 17 Cal.3d at p. 407.)

As relevant here, the Court rejected the city’s argument that proximate cause was inadequately pled. “Causation is a question of fact...” (*Alejo, supra*, 75 Cal.App.4th at p. 1189.)

Here, it is indisputable that the mandatory duty to investigate and report accounts of child abuse was intended to ‘protect children from child abuse.’ (§ 11164, subd. (a).) The complaint in the case before us alleges that despite Hector's account of Alec's abuse, Officer Doe performed no investigation and made no report and, as a result, Alec suffered further abuse. Therefore, the necessary linkage between the mandatory duty and the injury is established for pleading purposes.

(*Alejo, supra*, 75 Cal.App.4th at p. 1189.)

“Whether a reasonably prudent person receiving Hector's information would suspect child abuse and make a report is a question of fact to be determined at trial. We cannot say from the facts pled in the complaint that as a matter of law no reasonable person could form a suspicion of child abuse.” (*Alejo, supra*, 75 Cal.App.4th at p. 1189.)

In *B.H.*, the California Supreme Court criticized *Alejo* in certain respects. “*Alejo* conflates an officer's mandatory reporting duties with those of an officer investigating a reported instance of alleged child abuse or neglect. It failed to recognize that there is ‘a dichotomy between reporter and reportee, i.e., differentiating between those who make the initial report and the officials who come later’ in performing their investigatory or prosecutorial functions.” (*B.H., supra*, 62 Cal.4th at p. 188.) “Accordingly, section 11166, subdivision (a) only requires mandated reporters to *make* reports if the reporter, in his or her professional capacity or within the scope of his or her employment, knows or reasonably suspects child abuse or neglect. There is no requirement of a follow-up investigation to confirm any suspicions.” (*Ibid.*) The California Supreme Court disapproved this portion of *Alejo*, but noted the Legislature expressly endorsed *Alejo* “to the extent that it allowed such suits in general...” (*Id.* at p. 188, fn. 6.)

In this case, Plaintiff alleges mandated reporters were aware that Plaintiff was being abused by his parents and stepfather, but does not seem to allege that the other mandated reporters were aware of Deputy Cox’s alleged molestation of Plaintiff—although they were aware Plaintiff lived with Deputy Cox. Plaintiff seems to allege if these mandated reporters (excluding Cox himself in the second cause of action but including him in the third cause of action) had properly reported their knowledge of the abuse Plaintiff

suffered at the hands of his parents and stepfather, then the system would have kicked into gear and more likely than not Plaintiff would have ended up in an appropriate placement rather than in Deputy Cox's home. (See, i.e., Complaint, ¶44.)

While it is true that the system is involved and requires other actors (including social workers and the courts) to exercise varying degrees of discretion in determining whether to remove Plaintiff from his parents and stepfather's custody, Plaintiff effectively alleges that he was subject to such clear abuse that he clearly would have been removed to an appropriate placement which would *not* have been with Deputy Cox. One may question how Plaintiff ended up living with Deputy Cox and whether such placement may have been made even if the required reports were made, but Plaintiff alleges that would not have happened. Notwithstanding the intervening actors involved in the process, the *Landeros* decision and particularly the *Alejo* decision (notwithstanding disapproval on other grounds in *B.H.*) seem to support a finding that this claim can survive a pleading challenge.

Nevertheless, the first cause of action seems premised solely on Defendant's alleged failure to require its mandated reporter employees to sign required paperwork notifying them of their obligations under Penal Code section 11166.5. While the general failure to report the abuse is adequately pled, a cause of action premised solely on failure to require such paperwork be signed is a stretch. Plaintiff can still incorporate that allegation into his other causes of action by trying to show part of the reason the mandated reporter employees failed to report suspected abuse was because they were unaware of their obligations, but a separate cause of action is unnecessary. Therefore, the Court sustains the demurrer to the first cause of action without leave to amend but overrules the demurrer to the second and third causes of action.

Fourth cause of action for negligence and fifth cause of action for negligent hiring, retention, and supervision. Plaintiff alleges Defendant is directly liable due to the special relationship it had with Plaintiff and vicariously liable for its employees' failure to reasonably supervise its employees and abide by and enforce policies to protect children from childhood sexual assault. Deputies and employees other than Cox failed to protect Plaintiff from Cox in light of concerning and improper behavior that was suspicious such as isolating Plaintiff without supervision and taking Plaintiff to live in his home. Defendants had a duty but negligently failed to enact, implement, abide by and enforce and train its employees and staff in proper and adequate policies and procedures to protect minor Explorer participants

from the possibility of childhood sexual abuse. This failure allowed Deputy Cox to house Plaintiff at his personal residence, isolating him and making him a foreseeable victim. (Complaint, ¶¶62-73.)

“A plaintiff in any negligence suit must demonstrate “a legal duty to use due care, a breach of such legal duty, and [that] the breach [is] the proximate or legal cause of the resulting injury.”

[Citations.]” (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.)

There is no general rule to protect others from the conduct of third parties, but an exception exists when a person is in a “special relationship” with the victim or person who created the harm. (*Roe v. Hesperia Unified School Dist.* (2022) 85 Cal.App.5th 13, 25.) Defendant does not dispute it had a special relationship with Plaintiff by virtue of his participation in the Explorer Program. Defendant analogizes its duty to that of a school district, which “is liable ‘for the negligence of supervisory or administrative personnel who allegedly knew, or should have known,’ of the foreseeable risk to students of sexual abuse by an employee and nevertheless hired, retained, and/or inadequately supervised that employee. [Citation.]” (*D.Z. v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 210, 223.)

Defendant argues the complaint fails to state facts supporting an inference that any employee knew, should have known, or had reason to know that Cox’s status as an advisor to the Explorer Program would have exposed Plaintiff or any member of the Program to a risk of sexual abuse.

Plaintiff alleges Defendant’s employees were aware that Cox had taken Plaintiff in to live with him. Perhaps a police officer taking in a troubled youth is common, but the complaint alleges that alone was a sign of danger. Whether or not this was appropriate or should have clued in other employees to the possibility of molestation is an issue of fact that requires further development and is not amenable to resolution at the pleading stage. Therefore, the Court overrules the demurrer to the fourth and fifth causes of action.

RULING

For all the reasons stated above, the Court rules as follows:

1. Sustains the demurrer to the first cause of action without leave to amend; and
2. Overrules the demurrer to the second through fifth causes of action.

